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Trust Deficit in Ladakh

Democratic minimalism can't be the Centre's approach to a representative regional government in the high Himalayas



BY AMITABH MATTOO

In the mountains of Ladakh, haste can be extraordinarily dangerous, and resilience is a way of life. But forbearance has its limits, and the latest negotiations between New Delhi and Ladakh seem to be approaching them. On October 15, the Union home ministry presented representatives of the Leh Apex Body (LAB) and the Kargil Democratic Alliance with a draft "proposed constitutional and statutory framework for a Union Territory level body". The Ladakhi side rejected it as a departure from earlier assurances, including those recorded in the minutes of the May 22 meeting. A follow-up meeting fixed for October 22 did not happen. Only weeks ago, we seemed to be on the cusp of a constitutional breakthrough. Instead, we face another crisis of trust.

Trust in Ladakh is already at a premium. In September 2025, protests in Leh turned violent; four people were killed in police firing. Every round of talks since has been conducted in the shadow of those dark days. A failed negotiation now would not be read in Leh and Kargil as a procedural setback. It would be read as confirmation of New Delhi's insincerity.

Yet the negotiations have already achieved something significant. New Delhi has shown a willingness to consider an imaginative, sui generis arrangement for Ladakh: an elected territorial institution, constitutional safeguards through a new Article 371(K), and law-making, executive and financial powers within the UT framework. That matters. It recognises that India's constitutional genius has never rested on rigid uniformity. From Nagaland to Mizoram and Sikkim, asymmetrical arrangements have accommodated diversity while strengthening the Union. But the distinction between power and permission is fundamental.

The October 15 draft proposes constitutional recognition for an elected Ladakh body and for the Hill Councils, with the detailed arrangements to follow through presidential regulations under Article 240. Its subjects range from land and culture to forests, the environment, planning and the budget.



Illustration by RAJ VERMA

A PEOPLE HOPING TO BE LIBERATED FROM SRINAGAR'S INSENSITIVITY ARE NOW CONFRONTED BY THE KAFKAESQUE BUREAUCRACY OF THE MHA

The main hurdle for the Ladakhi representatives is that the elected body's regulations will have no effect until the lieutenant governor assents to them. The body would operate primarily on grants and allocations from the Centre, and the spending would also require their approval. Its control over the bureaucracy would remain circumscribed. Most tellingly, the draft states that "the Union's executive power would extend to giving directions to both bodies".

The Ladakhi representatives seek something more substantive: genuine legislative competence, an accountable executive, and authority over the officials implementing decisions in devolved subjects. An elected institution that can deliberate but cannot reliably legislate, administer or spend, risks becoming democracy without government.

There is a deeper irony. Ladakh's separation as a UT in 2019 was celebrated by many in Leh as emancipation from decades of marginalisation under Srinagar. Yet the promise of empowerment gradually collided with the realities of centralised administration. A people who had hoped to be liberated from Srinagar's insensitivity found themselves confronting the Kafkaesque bureaucracy of the ministry of home affairs.

The way forward needs clarity on three questions. Which powers are constitutionally guaranteed? Those over land, culture and the environment should be written into the new article itself, with regulations deemed to have assent if the lieutenant governor does not act within 60 days. Which officials are answerable to elected representatives? All officers working on a devolved subject, up to the department head. And which financial resources can be deployed without perpetual administrative permission? A fixed, formula-based share of the UT's budget, credited to the body's fund and spent on its own authority, with the Comptroller and Auditor-General keeping watch.

New Delhi's security concerns are legitimate. Ladakh borders China and Pakistan. Defence, border management and strategic infrastructure must remain firmly within the Union's domain. But national security does not require democratic minimalism. Ecological stewardship, the protection of local land and culture, and community participation in development are strategic imperatives. People defend most fiercely what they believe they have a stake in preserving.

Ladakh has never asked to distance itself from India. It asks only for a greater share in governing itself. A confident Republic should not fear that distinction. It should constitutionalise it. ■

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